

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: March 7, 2025 TIME: 9:00 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV415982	Frit San Jose Town and Country Village, LLC vs Philip Seaton	Hearing: Demurrer Ctrl Click (or scroll down) on Line 1 for tentative ruling.
LINE 2	24CV452068	Chi Moon et al vs Jean Lee et al	Hearing: Demurrer & Motion to Strike Plaintiff filed a First Amended Complaint on February 24, 2025. "A party may amend its pleading once without leave of the court ... after a demurrer or motion to strike is filed but before the demurrer or motion to strike is heard if the amended pleading is filed and served no later than the date for filing an opposition to the demurrer or motion to strike." (Code Civ. Proc. § 472, subd. (a).) The Demurrer & Motion to Strike are MOOT and therefore Off Calendar.
LINE 3	24CV428897	Wendy Warren vs Roygbiv Real Estate Development, LLC	Motion: Compel Further Responses Ctrl Click (or scroll down) on Line 3 for tentative ruling.
LINE 4	24CV453889	HANNAH SCHEIDT vs FORD MOTOR COMPANY et al	Off Calendar
LINE 5	24CV441836	Francisco Espinoza vs M & H Tavern Inc.	Motion: Withdraw as attorney Parties to appear. The Court cannot determine if notice to the client has been proper.

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Calendar Line 1

Case Name: *Frit San Jose Town and Country Village, LLC v. Philip Seaton*

Case No.: 23CV415982

Before the Court is defendant Philip Seaton's ("Defendant") demurrer to the First Amended Complaint ("FAC") filed by plaintiff Frit San Jose Town and Country Village, LLC ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. Background

According to the allegations of the FAC, Plaintiff and Defendant entered into a lease agreement (the "Lease") pursuant to which Defendant agreed to lease the premises (Unit 2117 or the "Premises") located at 388 Santana Row in San Jose (the "Property") for a term of approximately one year, beginning on February 3, 2018, and ending on March 2, 2019. (FAC, ¶ 6 and Exhibit A.) Under the Lease, Defendant agreed to "promptly reimburse" Plaintiff for "loss, damage, government fines, or cost of repairs or service" due to any violation of the Lease, improper use of the Premises, or the negligence of Defendant or their guests. (*Id.*, ¶ 7.) Additionally, under the terms of the Lease, Defendant agreed to take steps to avoid fire hazards in the Premises, including not storing any flammable or combustible objects or substances near any item that would produce heat, such as a stove or oven. (*Id.*, ¶ 8.)

On June 16, 2018, a fire occurred at the Premises which caused significant damage to the Premises and neighboring units. (FAC, ¶ 9.) An investigation by the San Jose Fire Department determined that the cause of the fire was a plastic bag of groceries left by Defendant on top of an active stove in the kitchen in the Premises. (*Id.*) Plaintiff incurred \$86,640.07 in damages in order to complete all repairs and remediation necessary to return the Property and Premises to a safe and habitable condition. (*Id.*, ¶ 10.)

Following completion of the aforementioned repairs, Plaintiff contacted CSAA Insurance Group ("CSAA"), Defendant's renter's insurance carrier and agent, and demanded reimbursement for the repair costs it incurred. (FAC, ¶ 11.) On December 13, 2021, after engaging in extensive communications with CSAA, including providing them with the scope, photographs and invoices for the work done to remediate the Property and the Premises as a result of the fire, CSAA and Defendant ultimately refused to reimburse Plaintiff for any of its damages as a result of this incident. (*Ibid.*)

Plaintiff alleges that Defendant breached the Lease on December 13, 2021, and thereafter, by failing and refusing to reimburse it for the damages caused by the fire. (FAC, ¶ 12.) Plaintiff seeks these damages, as well as attorney's fees pursuant to Section 31 of the Lease.

Plaintiff initiated this action with the filing of the complaint on May 8, 2023, and filed the operative FAC on March 29, 2024, which asserts a single cause of action for breach of contract. On October 23, 2024, Defendant filed the instant demurrer to the FAC on the ground of failure to state facts sufficient to state a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff opposes the demurrer.